C&W SERVICES

PURCHASE ORDER

TERMS & CONDITIONS OF PURCHASE ORDER

C&W: C&W Facility Services Inc. ("C&W")

1. This Purchase Order ("PO") sets forth the terms under which Vendor shall provide the goods and services described herein (the "Services"), including all labor, tasks, deliverables, and related activities identified in this PO and in any specifications, statements of work, or other documents incorporated by reference. Upon receipt of this PO, Vendor agrees to the terms and conditions incorporated herein by reference.

2. Vendor's notification to C&W of acceptance, commencement of work on the goods or Services subject to this PO or shipment of such goods, whichever occurs first, shall be deemed an acceptance of this PO. This PO, and any documents referenced and incorporated herein, including all terms and conditions on the face of the PO, sets forth the entire agreement of the parties with respect to the subject matter contained herein. Unless the parties have previously executed a separate written Agreement, Statement of Work, Order Form or Service Addendum ("Ordering Document") for the Client account, where applicable, this PO shall be deemed to cancel and supersede any prior agreements, written or oral between the parties. Any proposal of additional or different terms or any attempt by Vendor to vary in any degree any of the terms or conditions of this PO in Vendor's acceptance is hereby objected to and rejected. This PO may include an Ordering Document attached hereto.

3. Unless otherwise directed by an Ordering Document, Vendor shall submit correct and complete invoices to C&W with this PO number indicated thereon. Partial invoices will not be accepted. Payment shall be due within ninety (90) days of the date of receipt of an undisputed invoice, unless otherwise stated in an Ordering Document. C&W shall not be liable for payment of any invoice amount for Services or expenses not billed in a timely manner, and in no event for fees for Services more than ninety (90) days after such is performed or incurred as the case may be. If applicable, Vendor agrees that it will not be paid for the Services until and unless Client furnishes funds to C&W specifically designated for payment of the obligations due or to become due to Vendor hereunder; in the event Client fails or refuses for any reason whatsoever to provide C&W with funds sufficient to pay the compensation due to Vendor hereunder, C&W will not be able to make any payment of such compensation to Vendor, and Vendor shall have no claim for payment against C&W. In the event that Client becomes subject to a bankruptcy or insolvency proceeding and any fees and costs paid by Client to C&W (which formed the basis of C&W paying Vendor) are avoided and recovered pursuant to 11 U.S.C. Section 547, or similar state insolvency law, Vendor shall be required to refund the fees and costs Vendor received from C&W on account of such avoided transfer within 30 days after C&W provides Vendor with proof of such payment by C&W to Client's bankruptcy estate. If an amount less than the full amount of the alleged preferential payment is avoided, such as by way of settlement or partial defense, Vendor's refund obligations to C&W shall be limited to Vendor's pro rata share of any such avoided transfer(s).

4. All prices include F.O.B. delivery to building, applicable taxes and insurance, supervision, overhead and profit, unless specifically stated otherwise in this PO. C&W, on behalf of Client or otherwise, shall have no obligation to reimburse costs and expenses (if any) incurred by Vendor in connection with this PO, unless such costs and expenses have been approved in writing by C&W. All goods delivered to a Client must be signed for by a Client representative.

5. All orders must be confirmed in writing. C&W may cancel or terminate this PO upon written notice to Vendor at any time, without cause or penalty and shall only be liable to Vendor for fees incurred for actual Services rendered through the effective date of cancellation or termination. This PO does not obligate C&W to accept subsequent orders or any changes in the scope of the work. Any claim for any extra work by Vendor will require a separate PO approved by CW

6. C&W may assign this PO without approval of Vendor. Vendor may not assign this PO or subcontract any portion of the Services without C&W's prior written approval. Client is a third party beneficiary of this PO.

7. Vendor shall prepay all freight shipments. Contents of each package must be stated on a packing slip enclosed therein.

8. All goods to be furnished or Services to be performed shall be done in accordance with the plans, specifications and conditions identified in this PO, any scope of work or exhibit, or otherwise required at the building and must (regardless of specifications) comply with all local, state and federal laws, ordinances, rules, regulations and requirements. Should there be any violations of the foregoing in any part of the goods or Services to be furnished under this PO , Vendor shall, at its own expense, furnish all labor and materials to correct such violations.

9. Vendor agrees to repair, replace or make good any damages, defects or faults resulting from defective work that may appear within one year after C&W's acceptance of the materials or work, or for the agreed period of warranty as may be defined in any signed Ordering Document. Written guarantees, if requested, are to be furnished by the Vendor. If defective work or material is installed or furnished and allowed to remain, C&W is entitled to the difference in value between cost of work installed and cost of work specified.

10. Vendor will procure and pay for all necessary permits in conjunction with the Services. Vendor will furnish all labor, materials, tools, scaffolding, rigging, hoisting, etc., required to carry on the work in the best and most expeditious manner to protect its and other work. Vendor will do all necessary cutting and patching for the proper installation of its work, as well as remove and replace any interfering work. Vendor shall perform work so as not to unreasonably interfere with C&W or Client's operation of the property or business operations of any tenant or occupant of the buildings in which work is being performed. Vendor agrees to perform work in a good, workmanlike and timely manner, using reasonable care and skill in conformity with this PO and the highest standards in Vendor's industry, and as reasonably acceptable to C&W and Client, in accordance with Client's building operation rules and regulations. Vendor shall be solely responsible for any penalties and costs of labor and material to correct any work or Services as a result of any breach of this PO or violation of any applicable laws.

11. Vendor shall commence and complete the Services at such times as are required by C&W. Time is of the essence of this PO. Unless Vendor notifies C&W (in writing), no delay shall be considered for an extension of time. If at any time, C&W shall consider that proper progress is not being made, C&W, upon three day's written notice, shall have the right to employ proper and sufficient labor and material to proceed with the work, and charge all costs incurred in this connection to the account of Vendor and may pause any further payments until the work is completed.

12. Vendor shall, throughout the duration of the Services and for a period of three (3) years thereafter, at its cost and expense, carry and from time to time renew, the insurance set forth below. Notwithstanding the foregoing, the provisions below may change

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subject to the requirements of each Client. Any such changes will be set forth in the applicable Ordering Document.

(A) Commercial General Liability Insurance in the minimum amount of **$2,000,000,** per occurrence, **$5,000,000** aggregate which shall apply on a **per project or per location** basis, including Bodily Injury and Personal Injury Coverage (Mental Anguish, False Arrest, Detention or Imprisonment, Malicious Prosecution, Libel, Slander, Defamation or violation of Right of Privacy, Wrongful Entry or Eviction or other Invasion or Right of Private Occupancy), broad form Property Damage (including broad form contractual liability coverage for Vendor's indemnification as provided for in the PO), Premises Operations, Products/Completed Operations Hazard, and Independent Contractors;

(B) Worker's Compensation Insurance in statutory amounts in the state in which Services are to be performed which shall contain a waiver of subrogation in favor of C&W and Client;

(C) Employer's Liability Insurance in the minimum amount of **$1,000,000** per accident and disease**;**

(D) Commercial Automobile Liability Insurance covering owned, non-owned and hired automobiles, trucks and trailers used by Vendor in the minimum amount of **$1,000,000** combined single limit for Bodily Injury and Property Damage;

(E) In the event that Vendor is to have access to, or is responsible for handling C&W's or Client's funds, responsible for any oversight of or collection of any money or securities form third parties, and/or has unsupervised access to documents, property or equipment, a Fidelity Bond or Commercial Crime coverage with blanket coverage for clients' property on a blanket basis covering Vendor and its personnel, in an amount of **$5,000,000** or as C&W or Client shall reasonably request, having such deductible as shall be determined from time to time by C&W or Client, and naming C&W and Client as a loss payee;

(F) Non-occupational and Disability Insurance, if required by the State where the Property is located;

(G) In the event that Vendor is to park motor vehicles as part of the Services herein, Garage Keepers Legal Liability Insurance in an amount of not less than **$5,000,000**, which insurance may be subject to a deductible provision not to exceed $250 per occurrence;

(H) In the event Vendor is to operate a parking garage as part of the Services herein, Garage Liability Insurance in an amount of not less than **$5,000,000** combined single limit.

(I) Umbrella/Excess Liability providing coverage excess of the required employer's liability, commercial general liability, commercial automobile liability, garage keepers legal liability (if applicable to scope), and garage liability (if applicable to scope) insurance policies in a minimum amount of **$10,000,000** unless otherwise approved in writing by C&W or Client. Limits may be satisfied through a combination of primary and excess policies.

(J) Professional Liability. If Vendor's provision of Services includes the provision of any professional Services, including but not limited to consultative, design, or development Services or the provision of any advice or other professional Services, then Vendor will additionally maintain professional liability insurance, with coverage limits of US **$5,000,000** per claim. If coverage is written on a claims-made form, the retroactive date must be on or before the execution date of this PO and be maintained for a period of 7 years after the termination or expiration of this PO.

(K) In the event Vendor has access to C&W or Client systems, facility data, or has access to any personal or sensitive data of C&W or Client while performing Services, Cyber/Network Security Liability and Data Privacy Insurance with limits of at least $5,000,000 per claim covering network security, ransomware, privacy liability, electronic media and data breach. If coverage is written on a claims-made form, the retroactive date must be on or before the execution date of this PO, and be maintained for a period of 7 years after the termination or expiration of this PO.

(L) Property insurance against risks of physical damage or loss to personal property or equipment belonging to Vendor and/or its employees in amounts sufficient to replace such personal property in the event of loss.

(M) Any other insurance required to be maintained during the performance of the Services under this PO pursuant to the terms of any ground or other underlying lease(s) affecting the real property upon which the Services are to be performed (it being understood that Vendor shall comply with the insurance requirements of any such ground or other underlying lease(s), including, without limitation, to the extent such requirements require greater coverage levels than expressly required herein).

(N) Pollution Liability. If Vendor's provision of Services involves demolition, excavation, asbestos, lead, mold, pollutant abatement or any other activities which involve the potential for the release of, or an exposure to hazardous materials, as such term is defined under federal, state or local law, Vendor will maintain pollution liability insurance for claims arising out the discharge, dispersal, release or escape of any irritant or contaminant into or upon land, any structure, the atmosphere, watercourse, or body of water, including ground water, including coverage for on- and off-site clean-up costs, with limits of no less than **$5,000,000** per occurrence and **$5,000,000** aggregate. If coverage is written on a claims-made form, the retroactive date must be on or before the execution date of this PO, and be maintained for a period of 7 years after the termination or expiration of this PO.

All such insurance shall be issued by reputable insurance companies licensed to do business in the state where the Property is located, have a Best's rating of not less than A-/VII, and otherwise be satisfactory to C&W and Client. All of such policies shall be on an "occurrence basis" (with the exception of Professional Liability, Cyber/Network Security and Data Privacy Liability, and Pollution Liability), shall have commercially reasonable deductibles, and C&W (and C&W's subsidiaries and affiliates who are performing Services at the Property), Client (and Client's subsidiaries and affiliates) and any additional parties requested by C&W or Client shall be named as additional insureds on all of Vendor's policies required herein (except Workers' Compensation and Employer's Liability)as follows: Cushman & Wakefield U.S. Inc., and its affiliates, and the applicable Client and Client affiliates identified in the attached Ordering Document. The policies cannot contain any provision that would preclude coverage for suits/claims brought by an additional insured against a named insured.

Certificates in customary form, evidencing that premiums for the foregoing insurance have been paid, shall be delivered by Vendor to C&W simultaneously with Vendor's execution of the PO and prior to Vendor performing any Services hereunder. Within thirty (30) days prior to expiration of such insurance similar updated certificates shall be delivered by Vendor to C&W evidencing the renewal of such insurance, together with evidence of the payment of the premium. All certificates of insurance must contain a definite provision that if the policies of insurance evidenced by such certificates are canceled or changed during the periods of coverage as stated therein, in such a manner as to affect the coverage afforded by such policies, written notice will be mailed to C&W and Client by certified mail and return receipt requested at least thirty (30) days prior to such cancellation or change. In addition, any such changes or cancellations shall also be updated by Vendor in Cushman & Wakefield supplier management

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systems as stipulated by Cushman & Wakefield authorized representatives.

Vendor shall procure an appropriate clause in, or endorsement on, each of its policies whereby the insurer waives subrogation or consents to a waiver of the right of recovery against C&W (and C&W's subsidiaries and affiliates who are performing Services at the Property), Client, and any additional parties requested by C&W or Client, and having obtained such waiver of subrogation or waiver of the right of recovery, Vendor hereby agrees that it will not make any claim against or seek to recover from C&W (and C&W's subsidiaries and affiliates who are performing Services at the Property), Client, and/or any additional parties requested by C&W or Client, for any loss or damage from any risk or peril of the type covered or coverable by any insurance policy actually carried by or required to be carried by Vendor pursuant to the terms of the PO, including the amounts of any deductible or self-insured retention Vendor may carry.

Vendor's insurance policies shall be primary and noncontributory, and any such insurance maintained by C&W and/or Client shall be secondary and non-contributory and excess over any applicable insurance required to be maintained by Vendor hereunder. Any Umbrella/Excess policies maintained by Contractor, whether or not required in this PO, shall be first tier Umbrella/Excess coverage above the primary Commercial General Liability coverage afforded to C&W, Client, or any other additional insureds required in this PO and not concurrent with or excess to any other valid and collectible insurance available to C&W, Client, or any other additional insureds required in this PO, whether provided on a primary or excess basis (i.e., all Vendor's policies shall vertically exhaust and will not seek any contribution from C&W or Client's insurance, whether primary or excess, or look to horizontally exhaust).Vendor shall be solely obligated, and C&W or Client shall bear no obligation, for the payment of any deductibles, retentions, co-pays, or other charges applicable to any such insurance. Vendor's purchase and maintenance of the insurance required herein shall not limit or reduce Vendor's liability to C&W or Client in connection with any work and any project, nor limit C&W's or Client's rights and remedies against Vendor in any respect.

13. INDEMNIFICATION.

(a) Vendor shall, to the fullest extent permitted by law, indemnify and hold harmless C&W, its Clients and their respective subsidiaries, affiliates, shareholders, directors, officers, partners and employees (the "**C&W Indemnitees**") from and against any and all liability, claims, demands, losses, damages, expenses (including attorneys' fees and investigation costs), payments, recoveries and judgments in connection therewith, to the extent directly or indirectly arising out, of or caused in any manner, in connection with the performance of the Services hereunder including by (i) any acts or omissions of Vendor, its affiliates and any personnel performing Services on behalf of Vendor in connection with this PO ("Vendor Personnel"); (ii) the performance or failure to perform any Services under the PO; (iii) any representation or warranty or covenant or condition set forth in the PO by Vendor, its affiliates or Vendor Personnel; (iv) any breach of Section 22 (Confidential Information and Data Protection), Section 23 (Information and Physical Security Terms and Conditions), Section 24 (Global Privacy Requirements); and/or any other acts or omissions of Vendor, its Affiliates and Vendor Personnel other than in accordance with the terms hereof, which cause loss or disclosure of Client or C&W Data;, its affiliates or Vendor Personnel; (v) any claim that the Services or use of the Services infringes, violates or misappropriates any intellectual property rights of a third party (vi) the use of any C&W or Client tools or equipment by Vendor, its affiliates or Vendor Personnel; (vii) a breach of any obligation for which Vendor is responsible as employer or contractor of Vendor Personnel, including (as examples): (A) Vendor's employment of one or more of Vendor's employees; (B) any claim alleging that any of the C&W Indemnitees should be deemed the "employer" or "joint employer" of any Vendor Personnel, and (C) any claim by any member or former member of Vendor Personnel, alleging unfair dismissal, breach of contract, discrimination on the grounds of sex, race, disability, sexual orientation, religion or belief, age or equal pay; (viii) the violation of any applicable law, order, or regulation by Vendor, its affiliates or Vendor Personnel; (ix) any claim arising from or relating to work-related injuries of Vendor or Vendor Personnel (including the employees, agents, subcontractors and suppliers of Vendor Personnel), or (x) any property or injury to persons including death resulting therefrom.

(b) In addition, Vendor shall indemnify, hold harmless and defend, at its sole cost and expense, the C&W Indemnitees from any loss, damage, expense (including attorneys' fees and costs), payment, recovery and judgment arising out of any claim or threatened claim, alleging that any Services furnished hereunder infringe upon or violate a patent, copyright, trademark, trade secret or other proprietary right of any third party. C&W, at its sole cost and expense, shall have the right to be represented in any such action or proceeding by independent counsel of C&W's own choice.

(c) Vendor shall, at its own expense, defend any and all actions brought against C&W based upon any of the foregoing and shall pay all attorneys' fees and all other expenses, and promptly discharge any judgments, settlements or compromises arising therefrom. No third party claim or action may be settled or compromised by Vendor without C&W's prior written consent, unless the settlement or compromise includes a release of all claims against C&W and Client as applicable by the party bringing the claim or action; and C&W will have the right at its sole expense to participate in the legal proceeding with counsel of its own choosing. C&W will assist and cooperate in the defense as reasonably requested by Vendor, at Vendor's expense.

(d) Vendor's liability under this **Section 13 (Indemnification)** shall survive the expiration or termination of the PO.

14. Vendor agrees that if work performed or materials ordered are for a building in which any office of the United States of America is a tenant is located, and this Order is for an amount exceeding $2500.00, Vendor shall permit the Controller General of the United States or his duly authorized representative to have access to, and the right to examine any directly pertinent books, documents, papers and records pertaining to this Order until the expiration of three years after final payment of any monies has been made pursuant to the provision of this Order.

15. Vendor shall not cause or permit any mechanic's or materialmen's lien to be filed against any property, building, or improvement of Client or C&W in connection with this PO. Vendor shall, at its own expense, defend any and all legal actions (including the filing of any liens) brought against the Client and/or C&W in connection with this PO and shall pay all attorneys' fees and all other expenses and promptly discharge any judgments resulting there from. If any mechanic's or materialmen's lien is filed in connection with work performed, Services rendered, or materials furnished under this PO, Vendor shall cause the lien to be discharged within ten (10) days of filing, at Vendor's sole expense If Vendor fails to do so, Client or C&W may bond over or otherwise

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discharge the lien, and Vendor shall be solely responsible for all associated costs. Vendor shall indemnify, defend, and hold harmless Client and C&W from any costs, expenses, damages, or legal fees arising from any such lien filed or maintained by Vendor or its subcontractors.

16. Vendor promises and agrees to pay the taxes measured by the wages of its employees required by the Federal Social Security Act and any contributions required by any unemployment insurance laws and hereby accepts the exclusive liability for said taxes and contributions and agrees to indemnify and hold harmless the Client and C&W from any responsibility for same. Personnel supplied by Vendor will not for any purposes be deemed to be employees or agents of C&W or Client and Vendor assumes full responsibility for the acts and omissions for its suppliers, agents and employees while performing work under this PO and shall be solely responsible for their supervision and control.

17. C&W shall be the sole and exclusive owner of the following, including all intellectual property rights therein: (i) all deliverables, software, data, materials and products owned by C&W as of the date of this PO; (ii) all deliverables, software, data, materials and products created, developed or acquired by or on behalf of C&W (or affiliate) after the date of this PO; (iii) all reports and other outputs of the Services which (1) include, incorporate, or are derived from, C&W data; (2) are generated through C&W's (or an affiliate's) use of the Services; or (3) are delivered to C&W (or an affiliate) by Vendor in connection with the Services; and (iv) all modifications to and derivative works of any of the foregoing set forth in (i) through (iii) above developed by any person or entity (alone or jointly with others).

Vendor represents and warrants that all deliverables, software, data, materials and products developed under this PO by Vendor on behalf of C&W or a Client, whether or not Services are completed, are the exclusive property of C&W or Client, as applicable, unless such deliverable contains software or technology that is the property of a third party. Vendor represents and warrants that C&W or Client, as applicable, shall receive good and marketable title to all materials and products developed under this PO, free and clear of all liens, claims, encumbrances and security interest whatsoever of a third party, unless otherwise specified.

18. Vendor shall not use and shall prohibit all of its employees, subcontractors, and suppliers from using, C&W or Client trade names, trademarks and logos. It is understood and agreed that money damages would not be a sufficient remedy for any breach of this paragraph and that C&W and Client shall be entitled to equitable relief including injunction and specific performance as a remedy for any such breach.

19. Vendor shall comply with all applicable federal, state and local laws, codes, ordinances, rules and legal requirements affecting any Services provided pursuant to this PO. This PO shall be governed in accordance with the laws of the State of Illinois, or in the event of services provided on location to C&W Global Occupier Services, the State in which the building served is located or where the Services are provided. If, and while Vendor and its employees are on C&W or Client's premises in connection with the performance of any Services, they shall comply with all of C&W's and Client's directives, guidelines, procedures, rules, regulations and policies, including those concerning such matters as working hours (which will be established by C&W or Client), and C&W and Client's customary security measures. Vendor agrees and represents that as the employer of its personnel, it will comply with all requirements of applicable tax and employment laws and with all immigration laws, rules, and regulations and will provide Client and C&W only with personnel whose employment eligibility has been verified.

20. Nothing contained herein shall be deemed to create any association, partnership, joint venture or relationship of principal and agent or master and servant or employer and employee between the parties hereto or any affiliates or subsidiaries thereof.

21. COMPLIANCE

(a) Vendor Warranties. Vendor warrants that neither Vendor nor any of its employees, owners, agents, or subcontractors is blocked, debarred, designated, excluded, or sanctioned under laws related to the import and export of goods/technology/services, economic or financial sanctions, trade embargoes, or other restrictions on trade ("Sanctions & Trade Controls").

(b) In connection with performing Services under this PO, Vendor, its employees, owners, agents, and Subcontractors will comply with all applicable laws ("**Applicable Laws**"), including, but not limited to: (i) Applicable Laws related to anti-bribery or anti-corruption ("**Anti-Corruption Laws**"), including, but not limited to, the U.S. Foreign Corrupt Practices Act and the UK Bribery Act of 2010; and (ii) Applicable Laws related to Sanctions & Trade Controls, including, but not limited to, those administered and enforced by the United States (e.g., U.S. Export Administration Regulations, the International Traffic in Arms Regulations, U.S. Antiboycott Regulations) and the United Kingdom (e.g., as administered and enforced by the Office of Financial Sanctions Implementation). In performing Services under this PO, Vendor, its employees, owners, agents, and subcontractors will comply with Cushman & Wakefield's Global Vendor/Supplier Integrity Policy (available at: https://www.cushmanwakefield.com/en/about-us/supplier-management/supplier-policies).

(c) Vendor shall, and shall cause all Vendor Personnel to, at all times comply with all applicable federal, state and local laws, codes, ordinances, rules and legal requirements affecting the Services (including, without limitation, laws concerning the use, handling and disposal of hazardous materials, and laws concerning verifying an individual's legal right to work in the United States), as well as C&W's and Client's directives, guidelines, procedures, company policies rules, and regulations. If any Vendor Personnel will require access to C&W or a Client's premises or C&W or Client's equipment, systems, applications or networks, such Vendor Personnel must comply with C&W or Client's policies and all applicable laws and regulations while performing Services and may be required to execute a standard resource access agreement acknowledging these obligations as a condition of their receiving such access.

(d) Vendor agrees: (a) to comply with all applicable state and federal statutes, executive orders and regulations relating to non-discrimination in employment; and (b) to permit access to its books, records, and accounts by C&W for purposes of investigation to ascertain compliance with such rules, regulations, and orders.

(e) Notice. If Vendor becomes aware of any suspected or actual violation of applicable laws or policy, in connection with performance of this PO, Vendor will promptly notify C&W, unless prohibited by law.

22. CONFIDENTIAL INFORMATION AND DATA PROTECTION

(a) Vendor acknowledges that all information disclosed by C&W to Vendor in connection with this PO, including, without limitation, any Client information, personal information and any pricing, methods, processes, financial data, lists, apparatus, statistics, programs, research, developments or related information constitutes confidential information of C&W under this PO ("Confidential Information"). Vendor and any shall not

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disclose Confidential Information to any third party or to any Vendor Personnel not having a specific need-to-know in performing the Services. Vendor further agrees to instruct its personnel, officers and agents not to disclose any Confidential Information whether oral or written, without the prior written consent of C&W, and agrees to take all reasonable steps necessary to ensure fulfillment of this obligation.

(b) Vendor shall not, and shall not permit its affiliates, subcontractors, agents or Vendor Personnel to: (i) use any C&W data (which, for clarity includes Client data) other than to the extent necessary to perform the Services as set forth in this PO, without C&W's prior written approval (in its sole discretion); (ii) disclose, sell, assign, lease or otherwise provide C&W data to third parties, including its third party service providers, without C&W's prior written approval (in its sole discretion), and agreement in writing from the third party to safeguard such C&W data in a manner consistent with Vendor's obligations under this PO; or (iii) commercially exploit any C&W data. For the avoidance of doubt and notwithstanding anything to the contrary contained herein, unless expressly authorized in writing by C&W, Vendor shall not use C&W data, including in aggregate or de-identified form, for its internal purposes or for the benefit of any third party, including to make improvements to any Services, for development of benchmarks, for development of analytic models, in connection with any Vendor data pool, to develop training data or data models, or for any other purpose other than as expressly permitted herein.

(c) In the event that a subpoena or other legal process is served upon Vendor that in any way concerns information disclosed by C&W to Vendor, Vendor agrees to notify C&W immediately upon receipt of such subpoena or other legal process and will cooperate with C&W, at C&W's expense, in any lawful effort by C&W to contest the legal validity of such subpoena or other legal process. This **Section 22 (Confidential Information)** shall survive the termination or expiration of the PO.

23. INFORMATION AND PHYSICAL SECURITY. Vendor shall comply with the Information and Physical Security Terms and Conditions found at: https://www.cushmanwakefield.com/en/privacy-and-security-reference-documentation ("Information and Physical Security Terms and Conditions").

24. GLOBAL PRIVACY REQUIREMENTS. Vendor shall comply with the Global Privacy Requirements, including the Vendor Data Processing Agreement Exhibit found at: https://www.cushmanwakefield.com/en/privacy-and-security-reference-documentation ("Global Privacy Requirements").

25. The liability of Client (including any assignee or successor of Client) shall be limited to Client's interest in the building. Vendor acknowledges and agrees that C&W is issuing this PO in its capacity as manager of the property for Client and that Client shall have no liability or obligation to Vendor under this Contract.

26. Audit. C&W, its internal and external auditors, Client and any governmental authority shall have the right to audit all Vendor books and records, data and systems pertaining to Vendor's performance, charges, procedures, security, backup and disaster recovery at any time upon reasonable notice. Vendor will fully cooperate with C&W and Client. The right of C&W and Client to audit the books and records maintained by Vendor shall survive the expiration or termination of this PO.

27. Client Requirements/Flowdown Provisions. Vendor shall promptly implement and comply with, those terms, conditions, policies and procedures that C&W is required by its Client to comply with. C&W shall have the benefit of all rights, remedies and redress against Vendor that Client has against C&W with respect to all Flow-Down Provisions.

28. VENDOR USE OF AI

(a) Definition of AI. "AI" or "Artificial Intelligence" means any form of artificial intelligence or similar technology that enables computers and machines to simulate human intelligence or human-like cognitive abilities, to generate outputs such as content, predictions, recommendations, or decisions based on or in response to the inputs it receives. AI includes: machine learning, deep learning, generative AI, natural language processing, computer vision, Large Language Models (LLM), logic- and knowledge-based approaches, and all other current and future technology within the field of artificial intelligence.

(b) Permitted Use of AI. Other than as expressly set forth in this an Ordering Document (including in an Ordering Document for C&W access and use of a Platform with AI features or functionality), Vendor shall not, without C&W's prior written approval in each instance: (A) engage in any use of AI, including the generation of non-authentic, invented or automatically generated data that are not event generated in the real world ("Synthetic Data") or otherwise in connection to this PO; (B) include any C&W data or C&W materials, or any portion or attributes thereof, in any AI-related designs, databases, or models; or (C) use any C&W data or C&W materials, or any portion or attributes thereof, to train, or otherwise enhance the capabilities of, any AI (including AI designs, models, or tools) or in the development or enhancement of any AI (including AI designs, models, or tools).

(c) Requesting Approval of Vendor Use in AI. In the event Vendor desires to engage in any use of AI in a manner prohibited by Section 28(b) above, Vendor shall provide C&W a written request for approval, which request shall include a detailed proposal describing the specific AI involved, the purpose and function of the AI, risk assessments conducted for the AI, known potential risks for the use of the AI, mitigation procedures that Vendor will establish and maintain for the use the AI, data used in the AI, data privacy and security impact assessments for use of the AI, audit and testing procedures, and other information reasonably requested by C&W.

(d) AI Inputs and Outputs. AI Outputs (as defined below) and other results (including Synthetic Data, content, predictions, recommendations, decisions, insights, and results) arising out of any use of AI to process C&W data or C&W materials, or any other use of AI ("AI Outputs"), and all data and information supplied by any C&W affiliate, their Clients, or their users, to Vendor either directly through the Services as an input or indirectly through an integration, that is input into or used in any AI engine ("AI Input"), shall be deemed C&W data and/or C&W materials, as applicable. The AI Outputs and AI Inputs may not be used by Vendor for any purpose other than as necessary to perform the Services for C&W. The AI Outputs shall be accurate, complete, and free from material errors or defects.

(e) Compliance.

(i) Vendor represents and warrants that the Vendor, the Services, and its use of AI in or in connection with the Services or deliverables, will comply with all applicable laws, rules, statutes, regulations, governmental guidance, and industry and regulatory standards, frameworks, policies, and guidelines, related to AI and use thereof, including relating to ethical, responsible, safe, and/or secure use of AI, and all privacy and data security laws applicable to the use of data in connection with AI.

(ii) Vendor shall comply with all C&W policies and procedures related or applicable to AI.

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(iii) Vendor represents, warrants and covenants that (A) any Services or Platforms that use AI will be free from bias, and will not discriminate or deliver discriminatory outputs based on race, color, religion, sex (including pregnancy, sexual orientation or gender identity), national origin, age, disability genetic information or other protected characteristics; and (B) Vendor has implemented, maintains, and adheres to policies and procedures consistent with the highest industry practices and standards relating to the ethical and responsible use of AI, including for (I) developing and implementing AI in a way that promotes transparency, accountability and human interpretability; (II) identifying and mitigating bias in data or in the algorithmic model used in, or to train, teach or improve, Vendor's AI products; (III) management oversight and approval of Vendor staff's use or implementation of AI; and (IV) establish robust AI governance mechanisms, including conducting regular audits and reviews to ensure compliance with laws governing or related to AI.

(iv) C&W retains the right to review and audit the AI scope to ensure the segregation and security of C&W data in accordance with the terms of this PO. Vendor shall take reasonable methods to both ensure the security of C&W data within the database and any AI utility / agent and conduct proactive testing and provide reasonable assurance of controls around that security and any data leakage. Vendor shall establish any necessary supplementary AI controls within or in addition to the standard set of SOC controls. Any such review and audit by C&W will be conducted during Vendor's business hours upon thirty days' prior notice to Vendor and in a matter to minimize any material disruption to Vendor's business activities, and at most once annually. Vendor shall assist and cooperate fully with C&W and its auditors as reasonably required to carry out any such review and audit. If an audit reveals a material breach of the requirements of this Section 28, Vendor shall immediately correct same and promptly inform C&W in writing of the action taken to correct such errors.

29. LICENSE GRANT. If Vendor is providing or making available to C&W any software, application, solution or platform including but not limited to on a software-as-a-service basis (each, a "Platform") under this PO, Vendor shall (a) provide C&W, its affiliates, and any persons or entities authorized by C&W or its affiliates ("Authorized Users"), access to and use of the Platforms and all data, outputs and other results arising out of such access and use, (b) provide or make available all related documentation, and (c) provide all associated development, testing, implementation, maintenance and support, and managed hosting services. Vendor hereby grants to C&W, its affiliates, and Authorized Users a non-exclusive license to access and use the Platforms.